

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 22: Cultures of Food

Monday, August 18 and Tuesday, August 19, 2025

Managing Kashrut in a New Jewish Community

Bernard Dov Cooperman, University of Maryland

Pinkas Pisa, Volume 1: Central Archive for the History of the Jewish People, Film HM 887,

Introduction

How carefully did Jewish individuals observe halakhic requirements regarding kashrut, and how strictly did Jewish communities enforce them? Such questions seem pivotal when we consider a community such as that of Pisa/Livorno, newly established in the 1590s and overwhelmingly composed of, and led by, Portuguese conversos only recently arrived from the Iberian Peninsula. After all, these Jews had been living outwardly Christian lives for almost a century. How quickly did they accommodate, for example, the new rules of food consumption? How were such rules justified? And how effectively could they be enforced? While halakhic codes paint an idealized picture of uniform conformity, the deliberations and decisions of communal lay leaders point at a more complex reality and a less straightforward acceptance. We shall examine three separate rulings by the *Massari* of Pisa/Livorno between 1606 and 1616, in order to explore these questions. Our exploration of these specific cases and the mechanics of communal authority may lead us to broader considerations:

- a) The relation between an official rhetoric and “lived religion.”
- b) The particular effectiveness of food regulation in establishing group identity.
- c) The effort in these early-modern Jewish communities to establish (or invent) what is religiously acceptable in comparison with what occurred in Jewish communities elsewhere, for example in Poland which Moshe Rosman labeled “innovative tradition.”

- d) The relative roles of lay and rabbinic authority in these newly institutionalized communities, and the role that halakha played in community discipline.

Suggested Bibliography:

Food history is an expanding field and takes many approaches that cannot be touched on here. The following brief list is meant only to suggest lines of further research into themes touched on in our texts.

Francesca Bregoli, *Mediterranean Enlightenment: Livornese Jews, Tuscan Culture, and Eighteenth-Century Reform* (Stanford: Stanford University Press, 2014): Chapter 6: “Coffee and Gambling: Jewish Recreation and ‘National’ Separation,” pp. 152–180.

Bernard Dov Cooperman, “Defining Deviance, Negotiating Norms: Raphael Meldola in Livorno, Pisa, and Bayonne,” in *Religious Changes and Cultural Transformations in the Early Modern Western Sephardic Communities*, ed. Yosef Kaplan (Leiden and Boston: Brill, 2019), pp. 157–194.

Tamar El-Or, “A Temple in Your Kitchen: *Hafrashat Hallah*—The Rebirth of a Forgotten Ritual as a Public Ceremony,” in *Jewish Studies at the Crossroads of Anthropology and History: Authority, Diaspora, Tradition*, ed., Ra’anan S. Boustan, Oren Kosansky and Marina Rustow (Philadelphia: University of Pennsylvania Press, 2011), pp. 271–293 and 404f.

David M. Freidenreich, *Foreigners and Their Food: Constructing Otherness in Jewish, Christian, and Islamic Law* (Berkeley: University of California Press, 2011).

Moshe Rosman, “Innovative Tradition: Jewish Culture in the Polish-Lithuanian Commonwealth,” in *Cultures of the Jews*, ed. David Biale (New York: Schocken, 2002), pp. 519–570.

Ariel Toaff, *Mangiare alla giudia: la cucina ebraica in Italia dal Rinascimento all’età moderna* (Bologna: Mulino, 2011).

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Pinkas Pisa —Volume 1. CAHJP, Film HM 887, fol. 85v.

In Pisa on the 32nd day of the Omer, in the year 5376

The members of the *ma'amad* [council] together with the Haham¹ Azariah Picho and the accompanying members to the number of ten order that no Jew of whatever quality or condition whatsoever may take [i.e., purchase] meat in any way, for himself or others, nor may he order [someone else to] take in any fashion meat from any butcher shop or any other place outside of our butcher shop, whether it is known to be kosher or not, whether or not in the company of the ritual slaughterer. This does not apply to meat from the head or ribs [?] or other internal organs [*de meudo*—in modern usage, “tripe”] that is not liable for the *quattrino* [a small coin] for the communal charity fund. The reference to tripe is meant to refer to kosher meat.

The punishment for anyone who takes such meat from outside our butcher shop as above in any possible way is that of *herem*, *nidui* and *sematha* [various levels of excommunication, here collected for emphasis]. The same punishment will be applied to anyone who sees any Jew taking meat as above and does not come to testify within two days, that he will be declared as “*hermado*” [under a decree of excommunication]. This being noted, the members of the *ma'amad* will be obliged to publish it, and no Jew may engage in commerce with him, nor communicate with him. All of the said men [of the *ma'amad*] shall send and order such that no one will incur the danger [*hierro*] of eating non-kosher meat by mistake [*carne trefe por cazer*] and other misadventures, may they not occur [*que nisto poden aconteser*]

¹ Hebrew: scholar, a term used in Sephardic communities as an honorific and as a term for communal rabbi.

[i.e., *acontecer*]], and also so that the public charity fund will not lose any of the money from the *quattrino* for meat which is collected at its order, as well as for other reasons considered by those men.

Similarly, they further order that no *bodek* [Hebrew: person who checks, equivalent to modern kashrut supervisor called a *mashgiah*] or anyone else may store, or cause to be stored, meat outside the communal butcher shop. So that no one complains [*quexar*] and to avoid scandals and troubles that may henceforth arise.

They order that this ruling be announced from the reader's desk of the sacred synagogue on a day when the Torah [is read in public], so that it becomes known to everyone. Further it should be read and publicized together with the other *escamos* [rulings; literally, “agreements”] that they further prohibit and order.

They sign their names in Pisa.

Haham Azariel [!] Picho. Ishac Coen. Tobias do Campo. Jacob Gabay. Abraham de Lucena. Rafael Moreno. Rafael Valensi. Daniel Ferro. Daniel Salon. Jacob Machorro.

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En pisa adi 32 del Homer 5376 anos -

Sendo juntos los senores del maamad y juntamente o senior Hahan hazariah pigo y acompanados a cumplimento de diez Hordenaron que ninhu judeo de qualquer calidade y **condicion** que sea possa tomar para ssi nem para outrem nen mandar tomar ninhu[n] modo de carne en ninhuã Carneseria nen outra alguã parte fora da nosa carneçeria tanto que a conhesea por cazer como que a naõ conheza nen en companhia de pesoa que sagit nen en sua ausençia eceto cabeça coretelas ou qualquer outro modo demeudo que no paga o quattrin da sedacah y todo este meudo se entende de carne cazer soto pena de qualquer pesoa que tomar dita carne fora da nosa carneceria como arriba por qualquer via jmaginada que sea desde agora encorra en pena de Herem niduj e semata. Y na mezma pena encorra quen vir que qualquer judeu que toma carne como arriba e naõ vier manifestar dentro de dos dias pa[r]a o publicar por Hermado o qual sendo noto aos s[enho]res do maamad sejan obligados a o publicar e nenhu[n] judeu posa ter negocio comercio ni comunicaçan con ele o que tudo dito [!] senores mandaron y hordenaron afin que nenhuã pessoa posa encorer en hiero de comer carne trefe por cazer y outros enconvnientes que nisto poden aconteser e tambien p[ar]a que a sedacah no perda cousa nenguã do quattrin da carne que se cobrar por sua horden e por outros respeitos considerados por ditos señores y ansi mas hordenaron soto la misma peña que ningu[n] bodeque ni otra persona faça guardar ni guarde carne fora da carneçeria porque ninguno se posa queixar e por evitar escandalos e pesadumbres que daqui poden resultar e mandaron que se publique en la teva desta santa escola

en dia de sepher p[ar]a que venha a notiçia de todos juntamente se lea y publique con las otras escamos ansi lo probieron e mandaron e o firmaron de seus nomes en pisa et supla - Hahan Azariel [!] Picho - ishac coen, tobias do campo - Jacob gabay, Abrahan de lucena, Rafael moreno, Rafael valensi, daniel ferro, daniel salon, jacob machorro.

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Pinkas Pisa, Volume 1. Ben-Zvi Institute, MS 4009, fol. 34v.¹

[Patronizing Non-Jewish Taverns; Drinking Non-Jews' Wine]

In the name of God, Pisa, 19 of the month of Shevat of the year 5373, February 10, 1612 according to the Florentine calendar.²

The members of the *ma'amad* [council] together with the accompanying members together with the Haham³ Azaria Picho to the number of a *minyan*,⁴ all signed below.

They have observed the waste and great scandals that occur and are created in many ways by Jews going to eat and drink in the taverns and houses of *goyim* [Hebrew: gentiles]. They [therefore] order and command that from today forward, no Jew, whether adult or a minor, whether married or single, or a woman, whether a Jew with *goyim*, or a Jew with another Jew, or a Jew alone, under pain of *nidui*, *herem* and *shmata* [categories of excommunication], and a fine of ten ducats, half for the redemption of Jewish slaves [or: captives] of His Most Serene Highness [the Grand Duke of Tuscany] and the other half to be applied to the *sedaca* [charity fund] of this *escola* [community] for each time they do the opposite. If

¹ The text, taken from a few pages of the first Pisan *Pinkas* which were extracted from the original volume and preserved in the collection of Isaiah Sonne, were eventually preserved in the library of Ben-Zvi Institute in Jerusalem. The text of the original, provided here in Portuguese, is lightly emended from the transcription published by Renzo Toaff, *La Nazione ebrea a Livorno e a Pisa (1591–1700)* (Firenze: Olschki, 1990), pp. 496–497 after consulting the original, Ben-Zvi Institute MS 4009, fol. 34v.

² Equivalent to 1613 in the Pisan and Roman calendars

³ Hebrew: scholar, a term used in Sephardic communities as an honorific and as a term for communal rabbi.

⁴ Hebrew: quorum. For ritual purposes, Jewish tradition required ten males.

there are two Jews together or more who do this and one should quickly accuse the other, the accuser is absolved. Any Jew who sees or has knowledge, and any Jew or Jewess who has gone to such places for these reasons [*efeitos*—literally, effects], is obligated within twenty-four hours to come [*villo*] to inform the members of the *maamad* then in office, and those officials have the duty to act on it. It is declared that any Jew can freely try the said wine for the sole purpose of carrying it back to their house. And it is declared that any person who is or goes on the road may eat and drink in those non-local [*de fora*] hostelries, although they may not leave the city for that purpose to eat and drink in those hostelries, under the above-mentioned penalty. All of this is to be observed correctly and truthfully, without being able to sanction any of the above through any deception or trick. If any word should be missing or be extra [*soubejar*] in this *haskama* [ruling] all shall be understood as strengthening and enlarging this *haskama*.⁵ Thus did they approve and order and they signed their names. And I, David Abenine, *sofer* [scribe], have written at the command of the said Officers on that day and year.

Azaria Picho [Hebrew]

Selomo Zaqueto

Mose Israel

Mose Baru[ch]

Rafael Coen Fero

Jacob Gabay

Semuel Valenci

Mose Cavaleiro

Abram Salom

Josef Crispin

⁵ This is quite unusual language for the *pinkas* and may relate back to the standard ending inserted to confirming the authenticity Hebrew legal documents: והכל שריר וקיים. As to the legal question of interpreting the intent of unclear community regulations, see for example Joseph Goldberg, *Tovei ha-Ir* (Jerusalem: 1999/2000) or Israel Schepansky, *The Takkanot of Israel* (Jerusalem: Mossad Harav Kook, 1993), IV: *Communal Ordinances*, chapter 1.

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[Patronizing Non-Jewish Taverns; Drinking Non-Jews' Wine]

En el nome del Dio en Pisa, dia 19 de o mês de Sebat do ano 5373, des de febreiro 1612 al Fiorentino.

Estando juntos os Senhores do maamad e con eles os Senhores acompanhados juntamente o Senhor hah[a]m Azaria Picho a complimento do minhan, todos abaixo asinados, visto por eles os desbarates e grandisimos escândolos que por muitas vias procedem e nasem de yrem os Judeus a comer e beber as ostarias e tavernas e casas de goim, foi por ele ordenado e mandado que de oje em diante em ningun tenpo possa ningun Judeu grande e ~~pequeno~~, casado o solteiro ~~ou mulher~~ ir comer nem beber em ditas ostarias, tavernas e casas de goim, nem Judeu com goim, nem Judeu com outro Judeu nem Judeu sou, soto pena de niduy herem e sematá e de des ducados, ametade aplicados para o resgate dos escravos Judeus de S.A.S. e a outra ametade aplicados para a sedacá desta escola por cada ves que o fizerem ao contrario, e se forem dois Judeus juntos o mais e o fizerem, acusando logo un deles, ficará o acusador asolto, e soto a dita pena de herem qualquer Judeu que vir ou souber e qualquer Judeu ~~ou Judia~~ aja jdo a ditos lugares para ditos efeitos, seja oubrigado dentro de vinte e quatro oras villo a manifestar a hos Senhores do maamad que então forem, os quais Senhores terrão cargo de executar, e se declara que qualquer de dittos Judeus podem livremente provar dito vinho para efeito de o traserem para sua caza soumente, e não para outro efeito soto a dita pena, e se declara que qualquer pessoa che for e vier por caminho posa comer e

bever nas ostarias de fora com tanto que não posano jr da cidade para este efeito de comer e beber nas ditas ostarias soto a dita pena, e tudo esto se aja de observar con retetudine e verdaderia sem poderem pasar cousa nenhuma do sobredito soto protesto de algum emgano ou de astúcias, e se alguma palavra faltar ou soubejar nesta ascamá, tudo sija em fortificação y aumento de dita ascamá e assi o provérão e mandárão e o firmárão de seus nomes y eu David Abenine sofer o escrevi por mandado dos ditos Senhores dito dia e ano sudito.

Azaria Picho [ebr.], Mose Israel, Rafael Coen Fero, Semuel Valenci, Abram Salom, Selomo Zaquto, Mose Baru[ch], Jacob Gabay, Mosse Cavaleiro, Josef Crispin.

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[Cheese Not Prepared by Jews]

B”H¹

In Pisa, [Sunday,] 16 July, 5366.²

The members of the *ma'amad* [council] together with the accompanying members being gathered and Master Haham³ Samuel Chajes totaling ten, order:

Seeing the so great sin which is incurred in eating cheese not made by the hand of a Jew as well as [*poinas e leito*], they were in agreement and the vote was taken and it came out unanimously in favor. Then [?] they discussed the penalty that such eating deserved for contravening the words of our Sages of blessed memory. The said officials ordered that the punishment of excommunication [*niduy*] with all of its severity be imposed, and that this be publicized on the first day on which the Scroll of the Law [is taken out to be read in the synagogue]⁴ so that after the publication, anyone who transgresses that *niduy*, there being witnesses, shall be immediately publicly declared as *menude*. All the measures applied to the *menude* should be applied to him. And if he eats covertly the ban will enter his bones since he would be motivated and is motivated. All of the curses written in the book of

¹ Standard invocation in Hebrew characters variously read as *be-ezrat ha-shem* (with the help of God) or *be-shem ha-shem* (in the name of God).

² Equivalent to 1606 in the Florentine and Roman calendars, and to 1607 in the Pisan.

³ Hebrew: scholar, a term used in Sephardic communities as an honorific and as a term for communal rabbi.

⁴ I.e., either the first Monday or Thursday following the decision.

the Law apply to him. Thus they order and rule today, the said day and month and year mentioned above, *ve-shalom al ha-petirim* [and peace be upon the innocent]. And I, David Abenine, *sofer*, have written by order of the said officials. David Abenine.

Abrão Fraço Velho

Sanuel Boguati

David Mont[esin]os

Abram Framco

Mose Sullama

[The said *niduy* regarding cheese is withdrawn]

On 18 Tishre, 5368⁵

The members of the *ma'amad* being present, as well as the greater part of this Holy Congregation, and among them the Haham Samuel Hajes, it was voted on whether the punishment of *niduy* imposed above concerning cheese should, or should not, be lifted. The vote was taken. The results were 18 votes that it should be lifted and 10 that it not be lifted. For that reason, noting that the *kahal* was content and voted, the said *niduy* is removed, and it remains to be observed as before the imposition of that punishment.

And I, David Abenine, *sofer*, have written. David Abenine.

Abram Montesinos

Abraham Munhão

Moseh Israel

⁵ Equivalent to Oct. 9, 1607 in the Florentine and Roman calendars, and to 1609 in the Pisan.

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כ"ה

[niduy sobre o queijo]

en pisa a di 16 de Julio 5366

estando juntos os s[enho]res do maamad e aconpanhados e o s[enh]or hahã
semuel hajes conprimento a des ordenaraõ vendo o pecado taõ grande que ay no
comer do queijo¹ naõ feito por maõ de judeu e poinas e leite [?] foraõ de acordo e
foy balotado e sahiraõ todas de sy que novam[en]te dexando² a pena que merese o
que tal comer por pasar o mando dos nosos sabios de boa memoria—mandaraõ
ditos s[enho]res que se ponga pena de niduy con todas suas forsas e se publique o
primero dia de sefer tora para que dipois de pobicado todo o que pasar pelo dito
niduy avendo testigos supitam[en]te sera pobicado por menude e se usara con ele
con todas as ordeis que tem o menude. E se o comer encubertam[en]te o niduy
entre en sus guesos [=huesos] para que seja movido y es movido y jaza em ele toda
la maldisaõ la escrita en libro dela ley la esta e ansy mandaraõ e ordenaraõ oje dito
dia e mes e ano ariba dito vesalom al apeturim y eu david abenine sofer ho escrevy
por mandado dos ditos senhores David Abenine,

abrão Fraço Velho,

¹ this is how it is written, and I don't think an "s" after an "i" is written this way. Of course the word may be "queiso"

² deixando

samuel boguati,

david Mont[esin]os,

abram framco,

mose sullama.

[tirado ditto niduy do queijo]

em 18 de tisri 5368

estando presentes os senhores do maamad e a maior parte deste caal cados e entre eles o hahã semuel hajes foy balotado se a pena de niduy asima feita sobre o queijo se se tiraria o naõ e foy balotada dita parte e sahiu 18 balotas de si que se tirasse dito niduy e des que naõ se tirasse e por a qual resaõ visto o caal se contentar e ser balotato se tira dito niduy e fica para se oservar como de antes de por dita pena y eu david abenine sofer ho escrevy. - david Abenine

Abram Montesinos,

Abraham Munhaõ

Moseh Israel.